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Name of the Course : International Legal Structure

Title of the paper : The emergence of *“erga omnes partes”* standing is an important advancement as it might lead to enforcing international law obligations against States that refuse to comply. Discuss

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Word count : 1540 words.

Date of Submission : Sunday November the 9th, 2025.

Recent cases in the International Court of Justice, notable both cases presented to us, being the *Myanmar vs Gambia* first in 2020, and after in 2024, with the *Israel vs South Africa* case, presented to us the use of a law doctrine and questioned the international law order : The *Erga Omnes Partes,* and the consequences, regarding international obligation. Can we say, and as sustained by Basak Çali, head of research at the Bonavero Institute of Human Rights, that this new *Erga Omnes Partes,* strengthened the international System, in creating obligation for all the States, or it's just a new mechanism, to serve political rhetorical means and has no action lever to states who refuse to comply ? (Çali, 2010, pp. 3–23). But more than that, and has been introduced, by the second source for the essay, all directed from the International School of Yale, Justin Cole, Alaa Hachem and Oona A. Hathaway, whom they published, *A New Tool for Enforcing Human Rights: Erga Omnes Partes Standing,* in the *Columbia Journal of Transnational Law*, this question raised, mingle IR, IL, and it ask whether international law is merely reciprocal cooperation among states or a collective normative order that empowers all parties to enforce shared obligations.(Cole, Hachem & Hathaway, 2023, pp. 1–5)
This essay will focus, first, on a retrospective view, the emergence of the *erga omnes partes,* from the doctrinal origins to nowadays, focusing, in particular, on the International Court of Justice cases of South-Africa and Israël, and Gambia/Myanmar, using the different sources, who will be cited, throughout the essay, and referenced in the bibliography. The sources cited, will be academic, focusing on the reading proposed in the paper, and more specified academic sources.

I. How this idea of Erga Omnes Partes was built ?

Throughout history, the bilateral model was the one privileged by international law, a model in which only an "injured" (in the sense of vulnerability) state could bring a claim for breach of its own rights. The australian jurist, who compose our third source, James Crowford, a reference in international law, mostly because of his role has judge in the International Court of Justice, or Professor of International Law, reminds that this bilateral quote, was incorporated in the initial endeavors of the International Law Commission and the Articles on the Responsibility of nations for Internationally Wrongful Acts (ARSIWA), which predominantly assumed that only nations directly impacted may assert responsibility. However, and as Crowford mentions, there were some kinds of exceptions.(Crawford, 2013, pp. 15–20).
But, it's only in 1970's when the ICJ made a decision that created a milestone. Here is a practical source, for the essay, that will structure all our argumentation. The judgement in the *Barcelona Traction, Light and Power Company,* a case brought by Belgium, to sue the Light and Power Company. But more than the case in itself, In that decision, the Court distinguished between obligations owed to another state individually and those owed *"towards the international community as a whole."* The ICJ recognized that certain obligations — such as the prohibitions of aggression, slavery and racial discrimination — protect collective values and thus concern all states. This was the birth of the *erga omnes* concept. (ICJ, 1970, para. 33–34)
Reflecting on it, scholars such as Bruno Simma, introduced this concept of *Erga Omnes Partes.(1994, pp. 238–244)* Simma elucidated in his *Recueil des Cours lectures* that certain multilateral treaties, such as the Genocide Convention, establish obligations that each State Party is obligated to fulfill for all others, thereby establishing a community of interest that surpasses reciprocal mutual benefits.)The concept, as articulated by Simma, posits that

these treaties reflect collective principles that are so essential that any signatory is entitled to take measures to guarantee their compliance. This viewpoint was subsequently supported by information found in the Oxford Public International Law collection, which highlights that obligations *erga omnes partes* empower any State Party to demand accountability for violations, even in the absence of a direct harm. Personally, for me the main point of Simma could be resumed in this formula : the passage from bilateralism to community interest in International Law. We can therefore say that we have a stronger international law core, because we have accountability : a moral and legal collective accountability to preserve the shared values. This is translated in the analysis compiled in our mandatory source Çali (2010, pp. 3-23) who thinks that international law, cannot “desvinculate” from interdisciplinarity foundations, and the path to collective responsibility is now somehow irreversible. In, *New Tool for Enforcing Human Rights: Erga Omnes Partes Standing,* authors, says that recognizing *Erga Omnes Partes,* offers an effective means to uphold human rights commitments, particularly when the victims or the states directly impacted are failing to react. In their study featured in the *Columbia Journal of Transnational Law*, the authors demonstrate that collective standing changes the nature of international law from a framework similar to contracts into a “public order of humanity,” thereby ensuring that all states have an interest in adherence. In a similar vein, André Nollkaemper (2022), professor in the University of Amsterdam has characterized this progression as part of a larger trend towards “shared responsibility” in the realm of global governance, where international law is seen as a reflection of collective stewardship. More and more, we see with thanks to these sources in articles, or in the monographics, that an element is fundamental to understanding the *Ergo Omnes Partes,* that is the phenomenon of shared responsibility. The international community is 1 voice and a personal jurisdiction who can take accountability towards others states if core values are not respected.

But, is it possible to see this in practice ?

II. The “First”application of the Erga Omnes Partes and the creation of a “jurisprudence”… but how and why

The Case of Gambia vs Myanmar is quite significant. In 2019, Gambia, a State with no prospect into the case study of Myanmar, filed a case in the International Court of Justice, for the treatment of the Rohinga’s people under the jurisdiction of the Genocide Convention. Here is the first application of the Erga Omnes Partes. In the order of the 23 of January of the following year, ICJ, confirmed the intentions of Gambia’s to make a statement, of respecting the obligations, towards the international community as a whole. Here we have the application of Erga Omnes Partes and a clear shift in the international system : States are no longer only garant of themselves, but guarant of a shared valued system, where ‘national matters’ does not exist. Everything is international and each state is master of other states' matters. The court explanation and core analysis, echoes, to our reference, of Bruno Simma when he argues that specific obligations gain their authority from common moral duties instead of personal agreement.

We have confirmation of this phenomenon, in the second case study that we have, regarding the case filed by South Africa, regarding Israël. The provisional measures that we have as a document, acknowledge the same then in the case of Myanmar/Gambia. And, the timeline, as drawn by our document, in Çali’s article, more and more, *Ergo Omnes Partes,* begins to be a cornerstone of International Law because theory was doubled, by practice. The first case of Gambia’s was not an exception, but the beginning of a more large process, not only

political, but also rhetorical and historical. The beginning of a bridge between Law and international relations and even Çali, goes, as far as qualifying this *a collective accountability regime,* and qualifying the case of Gambia's as the *birth of a new jurisprudence of solidarity.* (Çali 2010, pp. 18–21). The Court's ruling acknowledged that smaller or geographically remote states are not insignificant players but valid protectors of collective standards. So to build a bridge between both cases, The Gambian one presented the basis, that will be confirmed by the South African Case. *Erga Omnes Partes,* as Hathaway and Cole presented, by making silence impossible, the *erga omnes partes* doctrine reduces the legitimacy of impunity, even though it does not completely eliminate it. Thus, the ability of international law to express collective responsibility despite power imbalances gives it strength. I would personally argue that it's a way to responsibilize and clarify international positions, as we see in both of the case study towards values and international obligations even though it is limited in practice.

III. *CONCLUSION :* IS THE REFUSING OF COMPLIANCE REALLY NARROWED BY THE *ERGO OMNES PARTES,* OR IS IT INEFFECTIVE ?

By making silence impossible, the erga omnes partes statement reduces the legitimacy of impunity, even though it does not completely eliminate it. Yes, *Ergo Omnes Partes* is clearly an important advancement in international law, towards collective responsibility, because the ability of international law to express collective responsibility despite power imbalances gives it strength. Thanks to the use of our sources, presented in introduction, we can respond to our central question, which was, how could we explain the phenomenon of *Ergo Omnes Partes.* However one mandatory source is missing from our essay, as well as one key question to discuss, linked with our essay : is *Ergo Omnes Partes* an effective means, forcing the compliance of international values and regulations, or, a means of public declaratory policy.

In order to evaluate the effectiveness of this *Ergo Omnes Partes,* we will use an academic source, divided in two separate articles, but which serve as my fifth and sixth sources for this essay. Both articles are written by Patricia Urs, public international lawyer, Junior Research fellow in Law at St John's College in Oxford, and are tackling the issue of *Ergo Omnes Partes,* but in a very interesting way.

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